

Dayanand Public School v. State of U.P.

Allahabad High Court · Division Bench · 21 July 2014 · Writ - C No. 36871 of 2014 · **Writ disposed; relegated to cl. 6.5(b) complaint.**

HEADNOTE

A consumer who disputes the accuracy or correctness of an electricity bill has a statutory complaint under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The High Court will not examine the bill on a writ petition and will leave the consumer to that remedy, directing the competent authority to decide the complaint in accordance with law.

FACTUAL SUMMARY

Dayanand Public School, through its manager S.K. Srivastava, filed a writ petition in the Allahabad High Court challenging the accuracy and correctness of a bill raised for consumption of electrical energy. The respondents included the State of Uttar Pradesh and officers of the distribution licensee, among them the Executive Engineer, Vidyut Vitran Khand, Orai, district Jalaun. After an adjournment on 18 July 2014 to take instructions, the Division Bench heard the school and the licensee's counsel on 21 July 2014.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill accuracy complaint

HOLDING

Where a consumer disputes the correctness or accuracy of an electricity bill, clause 6.5(b) of the U.P. Electricity Supply Code, 2005 supplies the complaint remedy before the competent authority. The writ court will not decide the bill on merits and will dispose of the petition with liberty to file that complaint, directing the Executive Engineer to consider and decide it in accordance with law and the prescribed procedure. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY AND CORRECTNESS OF THE ELECTRICITY BILL

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